



CHAPTER xl

An Act to authorise the construction of new or altered works and the acquisition of land for the purposes of or in connection with works authorised by the Dartford Tunnel Act, 1957, to authorise the abandonment of certain authorised works, to amend the Dartford Tunnel Acts, 1930 to 1961; and for other purposes.
[1st August, 1962]

WHEREAS by the Dartford Tunnel Acts, 1930 to 1957, the county councils of Essex and Kent (hereinafter referred to as "the Councils") are empowered to construct a tunnel for vehicular traffic under the river Thames between the borough of Dartford in the county of Kent and the urban district of Thurrock in the county of Essex and approaches thereto:

And whereas by the Dartford Tunnel Act, 1957 (hereinafter referred to as "the Act of 1957"), the Councils were authorised to construct in the borough of Dartford in the county of Kent certain new or substituted works which were designed to form a gyratory system of traffic at two levels at the junction with Princes Road, A.2, of the approach road to the said tunnel:

And whereas for the purposes of securing the free flow of traffic it is expedient that the junction between the said approach road and Princes Road should be constructed in a different manner:

And whereas it is accordingly expedient for that purpose that the Councils should be authorised to construct the works authorised by this Act and that the construction of certain works authorised by the Act of 1957 should be abandoned:

And whereas it is expedient that the Councils should be empowered to acquire lands for the purposes of or in connection with the works authorised by this Act and for or in connection with certain purposes of the Act of 1957:

And whereas it is expedient that the Dartford Tunnel Acts, 1930 to 1961, should be amended as in this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas an estimate has been prepared of the cost of constructing the works authorised by this Act (including the sum necessary for the purchase of lands therefor) and such estimate amounts to one hundred and seventy-two thousand and six hundred pounds:

And whereas the several works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans and sections showing the lines or situations and the levels of the works authorised by this Act, such plans showing also the lands which the Councils may acquire or use under the powers of this Act, and a book of reference to the said plans containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the said lands have been deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office of the House of Commons and with the respective clerks of the Councils which plans, sections and book of reference are in this Act respectively referred to as the deposited plans, the deposited sections and the deposited book of reference:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title
and citation.

1. This Act may be cited as the Dartford Tunnel Act, 1962, and the Dartford Tunnel Acts, 1930 to 1961, and this Act may be cited together as the Dartford Tunnel Acts, 1930 to 1962.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires, the expressions “the Councils” and “the Kent Council” have the meanings respectively assigned to those expressions by the Act of 1930.

(2) In this Act, unless the subject or context otherwise requires—

“ the Act of 1930 ” means the Dartford Tunnel Act, 1930;

“ the Act of 1937 ” means the Dartford Tunnel Act, 1937;

“ the Act of 1957 ” means the Dartford Tunnel Act, 1957;

“ the Act of 1961 ” means the Dartford Tunnel Act, 1961;

“ the authorised works ” means the works authorised by this Act and includes the new works;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Lands Tribunal Act, 1949, and the Land Compensation Act, 1961;

“ the new works ” means the works described in section 4 (Power to construct works) of this Act;

“ the tribunal ” means the Lands Tribunal.

(3) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

3.—(1) The following Acts and parts of Acts (so far as the Incorporation same are applicable for the purposes and are not inconsistent of Acts. with the provisions of this Act) are hereby incorporated with this Act, namely:—

the Lands Clauses Acts except sections 92, 127 to 131 and 133 of the Lands Clauses Consolidation Act, 1845;

the provisions of the Railways Clauses Consolidation Act, 1845, with respect to the temporary occupation of lands near the railway during the construction thereof.

(2) For the purposes of this Act the expressions “ the promoters of the undertaking ” and “ the company ” in the said Acts shall be construed to mean the Councils and the expression “ the railway ” in the Railways Clauses Consolidation Act, 1845, shall be construed to mean the new works and the expression “ the centre of the railway ” in the said Act shall be construed to mean any part of the new works.

4.—(1) Subject to the provisions of this Act, the Councils may, Power to in the lines or situations shown on the deposited plans and construct according to the levels shown on the deposited sections, make works. and maintain the following works in the borough of Dartford in the county of Kent, that is to say:—

Work No. 1 A diversion of Princes Road on the southern side thereof commencing at a point one hundred and twenty yards or thereabouts westward of the junction of Princes Avenue with Princes Road and terminating

in Princes Road at a point two hundred and forty yards or thereabouts westward of the point of commencement;

Work No. 2 A diversion of Princes Road on the northern side thereof commencing in Princes Road by a junction with Work No. 1 by this Act authorised at the termination thereof and terminating in Princes Road by a junction with the said Work No. 1 at the commencement thereof;

Work No. 3 A road forming a junction between Works Nos. 1, 2 and 6 by this Act authorised commencing by a junction with the said Work No. 2 at the termination of the said Work No. 6 and terminating by a junction with the said Work No. 1 at a point ninety yards or thereabouts south-westward of the commencement of the said Work No. 1;

Work No. 4 A road forming a junction between Works Nos. 1, 2 and 5 by this Act authorised commencing by a junction with the said Work No. 1 at a point eighty-five yards or thereabouts south-eastward of the termination of the said Work No. 1 and terminating by a junction with the said Work No. 2 at the termination of the said Work No. 5;

Work No. 5 A road commencing at a junction with Work No. 1A authorised by the Act of 1937 at a point one hundred and sixty yards or thereabouts east-south-eastward of the junction of Pilgrim's Way with Watling Street and terminating by a junction with Work No. 2 by this Act authorised at a point ninety yards or thereabouts north-eastward of the commencement of the said Work No. 2;

Work No. 6 A road commencing by a junction with the said Work No. 1A at a point one hundred and eighty-five yards or thereabouts east-south-eastward of the junction of Pilgrim's Way with Watling Street and terminating by a junction with Work No. 2 by this Act authorised at a point ninety yards or thereabouts north-westward of the termination of the said Work No. 2.

(2) The Councils shall erect a good and sufficient fence on each side of the bridges carrying respectively Works Nos. 1 and 2 authorised by this Act over Work No. 9 authorised by the Act of 1957.

Subsidiary works.

5. The Councils may as part of the new works execute and do any of the following works or things within the limits of deviation marked on the deposited plans:—

(a) make and maintain all such approaches, bridges, subways, roundabouts, stairs, ramps, passages, apparatus, plant and machinery as may be necessary or convenient;

(b) make junctions and communications (including the provision of steps or ramps for the use of persons on foot) with any existing streets, roads, lanes or footpaths intersected, crossed or interfered with by or contiguous to any of the new works and widen or alter the line or alter the level of any existing street, road, lane or footpath for the purpose of connecting the same with the new works or any of them or with any existing street, road, lane or footpath or of crossing under or over the same;

together with all necessary or convenient subsidiary and incidental works.

6.—(1) The Councils may stop up the whole or such portion or portions as they may think fit of the part of Princes Road in the borough of Dartford which is situate between the points marked A and B on the deposited plans.

Stopping up
of part of
Princes Road.

(2) On the stopping up of any part of Princes Road under the powers of this section all rights of way thereover shall be extinguished and any person who suffers loss by the extinguishment of any private right of way under this section shall, unless he receives compensation therefor under section 29 (As to private rights of way over lands taken compulsorily) of the Act of 1930, as incorporated with this Act, be entitled to be paid by the Councils compensation to be determined, in case of dispute, under and in accordance with the Land Compensation Act, 1961.

7.—(1) Works Nos. 1, 2, 3 and 4 authorised by this Act shall, upon completion thereof, respectively become trunk roads.

Maintenance
of certain
works, etc.

(2) (a) Works Nos. 5 and 6 by this Act authorised shall, upon completion thereof, respectively become county roads under the jurisdiction and management of the Kent Council and the soil under those works for such estate and interest as the Councils have acquired therein shall be vested in the Kent Council.

(b) The provisions of section 45 of the Highways Act, 1959, shall not apply to the said Works Nos. 5 and 6 or either of them.

(3) For the avoidance of doubt, it is hereby declared that any works constructed by the Councils under the powers of the Act of 1957 for the purpose of or in connection with the making of a junction or communication between Work No. 1 authorised by that Act and the London to Tilbury trunk road shall, on the completion of those works, form part of that road and become a trunk road accordingly.

8. The Councils shall abandon the construction of Works Nos. 9A, 9B, 9C, 9D and 10 authorised by the Act of 1957.

Abandonment
of certain
works
authorised
by Act of 1957.

Period for
completion
of works.

9. If the new works are not completed on or before the first day of October, nineteen hundred and sixty-five, then as from that date the powers by this Act granted to the Councils for making and completing the said works shall cease except so far as the same are respectively then completed.

Power to
acquire lands.

10.—(1) Subject to the provisions of this Act—

(a) the Councils may enter upon, take and use such of the Kent lands as may be required for the purposes of the new works; and

(b) notwithstanding anything in the Act of 1957 the Councils may enter upon, take and use such of the Essex lands as may be required for carrying out Work No. 1 authorised by the Act of 1957 or for the exercise in connection with that work of any of the powers conferred upon them by section 7 (Subsidiary works) of that Act.

(2) The powers of the Councils for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October, nineteen hundred and sixty-two.

(3) In this section—

“ the Essex lands ” means such of the lands delineated on the deposited plans and described in the deposited book of reference as are situated in the county of Essex; and

“ the Kent lands ” means such of the lands delineated on the deposited plans and described in the deposited book of reference as are situated in the county of Kent.

Correction
of errors in
deposited
plans and
book of
reference.

11.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Councils, after giving not less than ten days' notice to the owner, lessee and occupier of the land in question, may apply to two justices having jurisdiction in the place in which the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, with the respective clerks of the Councils, and with the town clerk of the borough of Dartford and the clerk of the urban district council of Thurrock, and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Councils to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of a certificate is deposited under this section shall keep it with the other documents to which it relates.

12. Any person acting on behalf of the Councils and duly authorised in that behalf may, on producing if so required some duly authenticated document showing his authority, at all reasonable times enter on any land which the Councils are authorised by this Act to acquire compulsorily for the purpose of surveying or valuing the land: Power to enter for survey or valuation.

Provided that no land shall be entered under this section unless the Councils, not less than seven days before the date of the first entry and not less than twenty-four hours before any subsequent entry, have given notice to the owner and occupier of the land.

13. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account— Disregard of recent improvements and interests.

(a) any improvement or alteration made or building erected after the fifth day of December, nineteen hundred and sixty-one; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made, erected or created with a view to obtaining or increasing the compensation or purchase money.

14.—(1) (a) The following provisions of the Act of 1930, the Act of 1937 and the Act of 1957 shall, subject to the provisions of this Act, apply and have effect for the purposes of or in connection with the construction of the authorised works and the acquisition of lands and easements under the powers of this Act and for other purposes of this Act as if the said provisions were, subject to any necessary modifications, in terms re-enacted in this Act, that is to say:— Application of certain provisions of Dartford Tunnel Acts, 1930, 1937 and 1957.

The Act of 1930—

Section 6 (Power to deviate);

Section 11 (Power temporarily to stop up or interfere with streets);

Section 13 (Underpinning of houses near works);

Section 15 (Power to alter sewers and drains);

Section 16 (Alteration of position of water, gas and other pipes);

Section 17 (Power to alter steps, areas, etc., and execute protective works);

Section 18 (Laying out repair and lighting of works);

Subsections (2) and (3) of section 19 (Maintenance and lighting of works);

- Section 21 (As to closing tunnel and works);
- Section 24 (Power to sell materials);
- Section 29 (As to private rights of way over lands taken compulsorily);
- Section 31 (Benefits to be set off against compensation);
- Section 34 (Persons under disability may grant easements, etc.);
- Section 35 (Agreements with owners of property);
- Section 36 (Purchase of lands by agreement);
- Section 38 (Power to lay out streets, etc.);
- Section 76 (Authentication and service of notices, etc.);
- Section 77 (Settlement of questions between Councils);
- Section 79 (Recovery of penalties, etc.);
- Section 84 (Crown rights);

The Act of 1937—

- Section 18 (Reservation of easements, etc.);
- Section 37 (Legal proceedings);
- Section 39 (Protection of members and officers);
- Section 40 (Judges and justices not to be disqualified);
- Section 41 (Penalty for obstructing execution of Acts);

The Act of 1957—

- Section 13 (Power to pump water and use sewers for removing water);
- Section 18 (Acquisition of part only of certain properties);
- Section 20 (Power to expedite entry);
- Section 23 (Power to reinstate owners of property);
- Section 24 (Provision of substituted sites);
- Subsections (2) and (3) of section 27 (Expenses of Councils and Committee);
- Section 52 (Arbitration);
- Section 53 (Saving for town and country planning).

(b) For the purposes of this section any references in the said applied provisions to the deposited plans or the deposited sections shall be construed as references to the deposited plans or the deposited sections as defined in this Act and references in the said applied provisions to any Act or Acts comprised in the Dartford Tunnel Acts, 1930 to 1957, shall be construed as including references to this Act.

(c) Nothing in the said section 18 of the Act of 1930, as incorporated with this Act, shall authorise the Councils after the completion of Works Nos. 1, 2, 3 and 4 by this Act authorised,

without the consent of the Minister of Transport, to execute any works or do any acts in, under or upon any of the carriageways or footways forming part of those works or to enter upon and break open the soil and pavement of such carriageways or footways or any sewers, drains or tunnels within or under the same.

(2) (a) For the purposes of section 53 (Confirming conditions of grant by Minister) of, and the Fifth Schedule to, the Act of 1930, and for the purposes of subsection (5) of section 8 (Application of moneys derived from tolls) of the Act of 1961 the authorised works shall be deemed to have formed part of the works authorised by the Act of 1930 as if the powers conferred by this Act had been conferred by that Act.

(b) Works Nos. 5 and 6 authorised by this Act shall for all the purposes of the Dartford Tunnel Acts, 1930 to 1961, be deemed to have formed part of the tunnel approaches as if those works had been included in the definition of that expression in subsection (1) of section 3 (Interpretation) of the Act of 1957 and references in the Dartford Tunnel Acts, 1930 to 1961, to the tunnel approaches shall be read and have effect as if they were references to the tunnel approaches as defined by the said subsection as amended by this Act.

15. Where by virtue of any provision in the Dartford Tunnel Acts, 1930 to 1961, or in this Act a power, however expressed, in relation to any functions of the Councils is conferred upon or exercisable by any officer or servant or other person in the employment of the Councils or the Councils are empowered to authorise or appoint any officer or servant or other person in their employment to act in any capacity or respect, the provision in relation to any function of the Councils for the time being delegated by them to a joint committee appointed pursuant to section 16 (Appointment of joint committee) of the Act of 1961 shall, unless the subject or context otherwise requires and subject to any restrictions or conditions attached to the delegation of the function, have effect as if the reference to any officer or servant or other person in the employment of the Councils (however expressed) included a reference in like terms to an officer or servant or other person in the employment of the said joint committee.

Application
of certain
provisions
to employees
of joint
committee.

16.—(1) The provisions of the Act of 1957 and of the Act of 1961 specified in the first column of the schedule to this Act shall have effect subject to the amendments specified in relation to those provisions respectively in the second column of that schedule, being amendments consequential on the foregoing provisions of this Act.

Consequential
and other
amendments,
etc.

(2) Nothing in section 18 of the Act of 1930, as applied to and re-enacted in the Act of 1957 by section 16 of the last-mentioned Act, shall authorise the Councils after the completion of Work No. 1 authorised by the Act of 1957 and of any such works as are referred to in subsection (3) of section 7 (Maintenance of certain works, etc.) of this Act, without the consent of the Minister of Transport, to execute any works or do any acts in, under or upon any of the carriageways or footways forming part of the London to Tilbury trunk road or to enter upon and break open the soil and pavement of such carriageways or footways or any sewers, drains or tunnels within or under the same.

(3) For the avoidance of doubt, it is hereby declared that section 8 (Application of moneys derived from tolls) of the Act of 1961 shall have effect as if in sub-paragraph (ii) of paragraph (b) of subsection (3) of that section after the word "approaches" there were inserted the words "(including any expenses incurred by the Councils in the exercise of the powers conferred upon them by section 34 (Provision and operation of services for transporting cyclists through tunnel) of the Act of 1957 in or in connection with the operation, maintenance, repair or renewal of vehicles)".

For
protection of
Postmaster
General.

17.—(1) Where in pursuance of the powers conferred by section 6 (Stopping up of part of Princes Road) of this Act any part of Princes Road is stopped up the following provisions shall, unless otherwise agreed in writing between the Councils and the Postmaster General, have effect in relation to so much of any telegraphic line belonging to or used by the Postmaster General as is under, in, upon, over, along or across such part at the time of such stopping up:—

- (a) The power of the Postmaster General to remove the line shall be exercisable notwithstanding the stopping up of such part of Princes Road so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster General has given notice to the Councils of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster General may by notice to the Councils in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;

(c) In any case in which the Postmaster General has given notice to the Councils under paragraph (a) or paragraph (b) of this subsection of his intention to remove the line or any part thereof the Councils may at any time after the receipt of such notice send by post to the Postmaster General a notice requiring the line or such part thereof as aforesaid to be removed or abandoned within such period, not being less than three months from the date of such last-mentioned notice, as may be specified in that notice and, unless before the expiration of such last-mentioned period or such longer period as may be agreed between the Postmaster General and the Councils the Postmaster General has removed the line or such part thereof as aforesaid or has given notice to the Councils of the abandonment of the line or such part, he shall be deemed to have abandoned the line or that part, as the case may be;

(d) (i) The Postmaster General shall be entitled to recover from the Councils the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster General may require:

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act, 1950, shall, so far as applicable, extend and apply to any payment to be made by the Councils under this paragraph as if the works in this paragraph hereinbefore mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under paragraph (d) of subsection (1) of section 17 (For protection of Postmaster General) of the Dartford Tunnel Act, 1962";

(ii) Any difference which may arise between the Councils and the Postmaster General under this paragraph shall be referred to and determined by arbitration;

(e) Where under paragraph (b) or paragraph (c) of this subsection the Postmaster General abandons the whole or any part of a telegraphic line it shall vest in the Councils and the provisions of the Telegraph Acts, 1863 to 1954, shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as any part of Princes Road has been stopped up the Councils shall send by post to the Postmaster General a notice informing him of such stopping up and the period of three months mentioned in paragraph (a) of subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) Any electrical works, machinery, plant or apparatus made, provided, erected or maintained under the powers of this Act shall be so made, provided or erected and so maintained, worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line.

(4) (a) The Councils shall in constructing the following works and part of a work authorised by this Act, that is to say:—

- (i) Works Nos. 1 and 5, and
- (ii) so much of Work No. 2 as is situate between the commencement of that work and the termination of Work No. 5 authorised by this Act,

provide therein for the telegraphic lines of the Postmaster General accommodation of the respective descriptions and dimensions stated in paragraphs (b), (c) and (d) of this subsection and shall provide also means whereby the Postmaster General may have access to such telegraphic lines after the same have been laid.

(b) The accommodation to be provided in the said Work No. 1 shall be—

- (i) in so much of that work as comprises the bridge carrying that work over Work No. 9 authorised by the Act of 1957, two chases or channels each affording space of cross-sectional dimensions of not less than two feet six inches in width and one foot in depth; and
- (ii) in the remainder of the said Work No. 1 two spaces each of cross-sectional dimensions of not less than those referred to in the foregoing sub-paragraph (i) or a space or spaces of such other dimensions affording in the aggregate a cross-sectional area of not less than six square feet as may be agreed between the Postmaster General and the Councils or, failing agreement, as may be determined in manner provided by section 6 of the Telegraph Act, 1878.

(c) The accommodation to be provided in the said Work No. 5 and in the portion of the said Work No. 2 referred to in sub-paragraph (ii) of paragraph (a) of this subsection shall be—

- (i) in so much of the said Work No. 5 as is confined on its western side by a retaining wall a space of such

dimensions affording a cross-sectional area of three square feet above the foundation of the retaining wall, as may be agreed or determined in the manner provided by sub-paragraph (ii) of the foregoing paragraph (b); and

- (ii) in the remainder of the said Work No. 5 and in the said portion of Work No. 2 a space or spaces of such dimensions affording in the aggregate a cross-sectional area of three and a half square feet as may be agreed or determined in manner aforesaid.

(d) In those portions of the said Works Nos. 1, 2 and 5 which are respectively referred to in sub-paragraph (ii) of the foregoing paragraph (b) and in sub-paragraph (ii) of the foregoing paragraph (c) such additional space shall be provided as may be agreed or determined in manner aforesaid to be reasonably necessary for the accommodation of chambers for making joints in the said telegraphic lines.

(e) Any additional cost incurred by the Councils in or in connection with the provision in the said portion of Work No. 2 or in the said Work No. 5 of such accommodation or space as is referred to in the foregoing paragraph (c) or the foregoing paragraph (d) or of means of access to any telegraphic lines laid therein shall be repaid to the Councils by the Postmaster General.

(f) The accommodation and means of access to be provided under this subsection shall be provided in accordance with plans, sections and particulars to be previously submitted to and reasonably approved by the Postmaster General:

Provided that if within one month of the receipt by him of the said plans, sections and particulars the Postmaster General shall not have intimated to the Councils his disapproval thereof or made any requirement with respect thereto he shall be deemed to have approved the same.

(5) In this section the expression "telegraphic line" has the same meaning as in the Telegraph Act, 1878.

18.—(1) For the protection of the mayor, aldermen and burgesses of the borough of Dartford (in this section referred to as "the Dartford Corporation") the following provisions of this section shall, unless otherwise agreed in writing between the Councils and the Dartford Corporation, apply and have effect. For protection of Dartford Corporation.

(2) The Councils shall not under the powers of section 13 of the Act of 1957 as incorporated with this Act, without the consent of the Dartford Corporation, discharge surface water into a soil sewer of the Dartford Corporation.

(3) The consent of the Dartford Corporation under subsection (2) of this section shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld shall be determined by arbitration.

For protection
of West Kent
Main
Sewerage
Board.

19. In exercising the powers given by section 13 of the Act of 1957 as incorporated with this Act the Councils shall not make any connection with a sewer belonging to the West Kent Main Sewerage Board or to a sewer or drain communicating with a sewer of the said board except with the consent of that board in writing and in accordance with such terms and conditions as that board may reasonably attach thereto but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld or as to whether the terms and conditions subject to which any such consent is given are or are not unreasonable shall be determined by arbitration.

For protection
of
Metropolitan
Water Board.

20.—(1) For the protection of the Metropolitan Water Board (hereinafter referred to as “the board”) the following provisions of this section shall, notwithstanding anything contained in any other enactment, unless otherwise agreed in writing between the Councils and the board, apply and have effect.

(2) In this section, unless the subject or context otherwise requires, “apparatus” means mains, pipes or other apparatus and includes any works constructed for the lodging therein of apparatus.

(3) In constructing Works Nos. 1 and 2 authorised by this Act, the Councils shall provide, either in the bridge carrying the said Work No. 1, or the bridge carrying the said Work No. 2, over Work No. 9 authorised by the Act of 1957 accommodation and support for one water main having an internal diameter of twelve inches and one water main having an internal diameter of four inches.

(4) Such accommodation and support shall be of such nature as may be agreed between the Councils and the board or, in default of agreement, determined by arbitration and shall be in such position as may be agreed or determined as aforesaid.

(5) The board shall be entitled at all times to use free of charge the accommodation provided pursuant to the foregoing provisions of this section for the purpose of laying and placing therein the said apparatus with any necessary apparatus ancillary thereto.

(6) (a) The Councils shall repay to the board the expenses reasonably incurred by them in or in connection with the provision, laying and placing of a four-inch water main—

(i) in the accommodation provided pursuant to the foregoing provisions of this section; and

- (ii) in the remainder of the said Work No. 1 or the said Work No. 2, as the case may be, so as to connect with the existing four-inch main of the board in Princes Road:

Provided that if any financial benefit is conferred upon the board by deferment of the time for renewal of so much of the said existing four-inch main as will be replaced by the new main to be provided, laid and placed as aforesaid the sum payable by the Councils to the board under this paragraph shall be reduced by the amount which represents that benefit.

(b) Upon the completion of the works referred to in paragraph (a) of this subsection so much of the said existing four-inch water main in Princes Road as will be rendered unnecessary by those works shall be transferred to and vest in the Councils.

(7) If any question or difference shall arise between the Councils and the board under this section (other than a difference as to the meaning or construction of this section) such question or difference shall be determined by arbitration.

21.—(1) For the protection of the South Eastern Gas Board (hereinafter referred to as “the board”) the following provisions of this section shall, notwithstanding anything contained in any other enactment, and unless otherwise agreed in writing between the Councils and the board, apply and have effect. For protection of South Eastern Gas Board.

(2) In this section “the existing transmission main” means the existing thirty-six-inch transmission main of the board laid pursuant to subsection (7) of section 49 (For further protection of South Eastern Gas Board) of the Act of 1957 in the cutting referred to in subsection (7) of that section.

(3) As soon as reasonably practicable after the passing of this Act the board shall in accordance with such plans, sections, particulars and conditions and at such time or times as may be agreed between the Councils and the board or, in default of agreement, determined by arbitration divert or relay the existing transmission main:

Provided that, unless the board otherwise agree, the board shall not be required to divert or relay the existing transmission main so that the depth below the surface of the ground of the main when diverted or relaid will be greater than five feet measured at right angles to the slope of the surface nearest to the main.

(4) The Councils shall on lands belonging to them and without making any charge therefor provide all such facilities as may reasonably be necessary for the purpose of diverting or relaying the existing transmission main pursuant to subsection (3) of this section.

(5) All such supports as may be reasonably necessary for supporting the existing transmission main as diverted or relaid pursuant to this section shall be provided by or at the cost of the Councils and shall be so constructed as to afford support to any such additional transmission main as may be laid pursuant to subsection (6) of this section.

(6) The board shall be entitled at any time without making payment for such right to lay one additional transmission main having an internal diameter not exceeding thirty-six inches in a line parallel to, and at the same level as, and at a distance of not less than eighteen inches and not more than four feet from the existing transmission main as diverted or relaid pursuant to this section.

(7) For the purposes of inspecting, maintaining, repairing, renewing or removing the existing transmission main when diverted or relaid pursuant to this section or laying, inspecting, maintaining, repairing, renewing or removing any such additional transmission main as is referred to in subsection (6) of this section the board shall have all such rights of access to any such main and of entering upon, breaking up and interfering with the land in which the main is or will be situated as they would be entitled to exercise, and shall be subject to all such obligations as they would be subject to, if the said land formed part of a street under the management or control of the authority in whom that land is for the time being vested.

(8) In constructing Works Nos. 1 and 2 authorised by this Act, the Councils shall provide either in the bridge carrying the said Work No. 1, or the bridge carrying the said Work No. 2, over Work No. 9 authorised by the Act of 1957 accommodation and support for one gas main having an internal diameter of eight inches.

(9) Such accommodation and support shall be of such nature as may be agreed between the Councils and the board or, in default of agreement, determined by arbitration, and shall be in such position as may be agreed or determined as aforesaid.

(10) The board shall be entitled at all times to use free of charge the accommodation provided pursuant to subsections (8) and (9) of this section for the purpose of laying and placing therein such apparatus as is referred to in the said subsection (8) with any necessary apparatus ancillary thereto.

(11) The Councils shall repay to the board the reasonable expenses incurred by the board in or in connection with—

(a) the diversion or relaying of the existing transmission main pursuant to this section;

(b) the provision, laying and placing of a gas main with an internal diameter of eight inches in the accommodation

provided pursuant to subsections (8) and (9) of this section and the diversion into the said Work No. 1 or the said Work No. 2, as the case may be, of the existing eight-inch gas main of the board in Princes Road; and

- (c) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection.

(12) If any question or difference shall arise between the Councils and the board under this section (other than a difference as to the meaning or construction of this section) such question or difference shall be determined by arbitration.

22.—(1) For the protection of the undertakers the following provisions of this section shall, unless otherwise agreed in writing between the undertakers and the Councils, apply and have effect. For protection of certain electricity undertakers.

(2) In this section—

“ apparatus ” means any electric line (as defined in the Electric Lighting Act, 1882) of the undertakers; and

“ undertakers ” means—

the Central Electricity Generating Board; or

the London Electricity Board; or

the South Eastern Electricity Board;

as the case may be.

(3) In the carrying out of the authorised works the Councils shall not—

(a) remove, displace or alter any apparatus, not being apparatus situate in, under or over any street; or

(b) without the consent in writing of the undertakers, do anything to interrupt the continuous supply of electricity by means of such apparatus;

until good and sufficient apparatus and all other works necessary or proper for maintaining the continuity of such supply shall at the expense of the Councils and to the reasonable satisfaction of the undertakers have been first made and laid down and be ready for use in such positions as the undertakers shall reasonably approve.

(4) The provisions of the Public Utilities Street Works Act, 1950, shall in relation to any works executed in, under or upon any street by the Councils under this Act by which apparatus of the undertakers is affected have effect as though such works were executed for road purposes and were mentioned in

paragraph (a) of subsection (1) of section 21 of the said Act of 1950 and subsections (2) to (5) of section 16 of the Act of 1930 shall not apply in relation to any such apparatus or works.

(5) Should any interruption in the supply of electricity by the undertakers during the construction of the authorised works be in any way occasioned either by reason of the exercise by the Councils of the powers of this Act or by any act or default of the Councils or any of their contractors, agents, workmen or servants or any person in the employ of them or any or either of them the Councils shall make to the undertakers full compensation for any loss, injury or damage sustained by the undertakers consequent upon such interruption.

(6) Where by reason or in consequence of the exercise of any of the powers of this Act any apparatus is rendered derelict or unnecessary the Councils shall pay to the undertakers the value of such apparatus so rendered derelict or unnecessary unless proper and sufficient substituted apparatus is provided by or at the cost of the Councils and the cost reasonably incurred by the undertakers in the cutting off of such apparatus from other apparatus. Any apparatus so rendered derelict or unnecessary shall be the property of the Councils.

(7) In any case where the Councils stop up temporarily any road, street, bridge, footpath or way under the powers of section 11 of the Act of 1930, as incorporated with this Act, or exercise in respect of any approach road the powers of section 21 of the Act of 1930, as so incorporated, the Councils shall afford to the undertakers and their officers and employees, contractors or agents reasonable access for the purposes of inspecting, repairing, maintaining, renewing or removing any apparatus in, on or under any such road, street, bridge, footpath or way, or the part of any approach road wholly or partly closed under the powers of the said section 21 as so incorporated.

(8) The provisions of Part II of the Twelfth Schedule to the Highways Act, 1959, shall apply in relation to any part of Princes Road permanently stopped up under the powers of section 6 of this Act to the same extent as if such part had been stopped up pursuant to an order made under section 108 of the said Act of 1959 on the application of the Councils.

(9) Any difference which shall arise between the Councils and the undertakers under this section otherwise than under subsection (4) thereof shall be determined by arbitration.

Costs of Act.

23. The costs, charges and expenses preliminary to, and of and incidental to, the preparation of, and application for, and the obtaining and passing of, this Act, as taxed by the taxing officer of the House of Lords or of the House of Commons, shall

be deemed for the purposes of the Dartford Tunnel Acts, 1930 to 1962, to form part of the cost of the works authorised by the Dartford Tunnel Acts, 1930 to 1962, and shall, subject to the provisions of the Fifth Schedule to the Act of 1930, be borne by the Councils in equal shares and be paid out of their respective county funds or out of moneys to be borrowed under or by virtue of the Dartford Tunnel Acts, 1930 to 1962.

SCHEDULE

CONSEQUENTIAL AMENDMENTS OF THE ACT OF 1957 AND THE
ACT OF 1961

Provision amended (1)	Amendment (2)		
Act of 1957— Section 3 (Interpretation) ...	In subsection (1) in the definition of “ the tunnel approaches ” for the reference to Works Nos. 9A, 9B, 9C and 9D authorised by the Act of 1957 there shall be substituted a reference to Works Nos. 5 and 6 authorised by this Act.		
Section 39 (For protection of Postmaster General)	In subsection (5) the references to Work No. 10 authorised by the Act of 1957 shall be omitted.		
Section 43 (For protection of West Kent Main Sewerage Board)	In paragraph (b) of subsection (2) for the reference to Works Nos. 9A, 9B, 9C and 9D authorised by the Act of 1957 there shall be substituted a reference to Works Nos. 5 and 6 authorised by this Act.		
Section 47 (For protection of Metropolitan Water Board, North Thames Gas Board and South Eastern Gas Board)	In subsection (2) in the definition of “ protected highway ” for the reference to Works Nos. 9A, 9B, 9C and 9D authorised by the Act of 1957 there shall be substituted a reference to Works Nos. 5 and 6 authorised by this Act and in subsections (4) and (6) for the references to the Dartford Tunnel Acts, 1930 to 1957, there shall be substituted references to the Dartford Tunnel Acts, 1930 to 1962.		
Section 48 (For further protection of Metropolitan Water Board)	In subsection (3) in the table the words— <table> <tr> <td>“ Bridge Work No. 10</td><td>One water main having an internal diameter of twelve inches. One water main having an internal diameter of four inches.”</td></tr> </table> shall be omitted; and in subsection (6) the reference to Princes Road shall be omitted.	“ Bridge Work No. 10	One water main having an internal diameter of twelve inches. One water main having an internal diameter of four inches.”
“ Bridge Work No. 10	One water main having an internal diameter of twelve inches. One water main having an internal diameter of four inches.”		
Section 49 (For further protection of South Eastern Gas Board)	In subsection (3) in the table the words— <table> <tr> <td>“ Bridge Work No. 10</td><td>One gas main having an internal diameter of eight inches.”</td></tr> </table> shall be omitted; in subsection (6) the reference to Princes Road shall be omitted; and subsections (7) to (11) shall be omitted.	“ Bridge Work No. 10	One gas main having an internal diameter of eight inches.”
“ Bridge Work No. 10	One gas main having an internal diameter of eight inches.”		

Provision amended (1)	Amendment (2)
Act of 1961— Section 8 (Application of moneys derived from tolls)	In subsection (5) for the references to the Dartford Tunnel Acts, 1930 to 1957, there shall be substituted references to the Dartford Tunnel Acts, 1930 to 1962.
Section 16 (Appointment of joint committee)	In subsection (1) for the reference to the Dartford Tunnel Acts, 1930 to 1961, where that reference appears for the second time, there shall be substituted a reference to the Dartford Tunnel Acts, 1930 to 1962; and in paragraph (a) of the said subsection (1) for the reference to the Dartford Tunnel Acts, 1930 to 1957, there shall be substituted a reference to the Dartford Tunnel Acts, 1930 to 1962.

SCH.
—cont.



Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act, 1845	8 & 9 Vict. c. 20.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Dartford Tunnel Act, 1930	20 & 21 Geo. 5 c. clxxxii.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Dartford Tunnel Act, 1937	1 Edw. 8 & 1 Geo. 6 c. cxxvii.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6 c. 42.
Public Utilities Street Works Act, 1950 ...	14 Geo. 6 c. 39.
Dartford Tunnel Act, 1957	5 & 6 Eliz. 2 c. xxxiv.
Highways Act, 1959	7 & 8 Eliz. 2 c. 25.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.
Dartford Tunnel Act, 1961	9 & 10 Eliz. 2 c. xxv.

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10 & 11 ELIZ. 2 Ch. xl

ARRANGEMENT OF SECTIONS

Section

1. Short title and citation.
2. Interpretation.
3. Incorporation of Acts.
4. Power to construct works.
5. Subsidiary works.
6. Stopping up of part of Princes Road.
7. Maintenance of certain works, etc.
8. Abandonment of certain works authorised by Act of 1957.
9. Period for completion of works.
10. Power to acquire lands.
11. Correction of errors in deposited plans and book of reference.
12. Power to enter for survey or valuation.
13. Disregard of recent improvements and interests.
14. Application of certain provisions of Dartford Tunnel Acts, 1930, 1937 and 1957.
15. Application of certain provisions to employees of joint committee.
16. Consequential and other amendments, etc.
17. For protection of Postmaster General.
18. For protection of Dartford Corporation.
19. For protection of West Kent Main Sewerage Board.
20. For protection of Metropolitan Water Board.
21. For protection of South Eastern Gas Board.
22. For protection of certain electricity undertakers.
23. Costs of Act.

SCHEDULE—Consequential amendments of the Act of 1957 and the Act of 1961.

